

Yashveer Singh Alias Babloo v. State of U.P.

Allahabad High Court · Division Bench · 13 October 2020 · Writ - C No. 16091 of 2020 · **Writ disposed; petitioner relegated to clause 6.5 objection.**

HEADNOTE

A writ challenging an Executive Engineer's demand notice dated 23.03.2020 was disposed of on the respondents' stand that the consumer may object under Para-6.5 of the U.P. Electricity Supply Code, 2005. Liberty was granted to file the objection before the concerned Executive Engineer within three weeks; if so filed, the competent authority is to decide it in accordance with law, preferably within six weeks, after hearing. The Court expressed no opinion on merits.

FACTUAL SUMMARY

Yashveer Singh Alias Babloo filed a writ petition in the Allahabad High Court challenging a demand notice dated 23 March 2020 issued by the Executive Engineer / Prescribed Authority. Counsel for the State and the electricity respondents submitted that the petitioner had a right to object under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, and that any such objection would be decided by the competent authority.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection

HOLDING

On the respondents' statement that the petitioner may object under Para-6.5 of the U.P. Electricity Supply Code, 2005, the Court disposed of the writ challenging the 23.03.2020 demand notice with liberty to submit an objection, with a copy of the order, before the concerned Executive Engineer within three weeks; if so filed, the competent authority shall decide it in accordance with law, expeditiously, preferably within six weeks, after affording a reasonable opportunity of hearing. No opinion was expressed on merits. ¶ 3-4

PRINCIPLE TAGS

clause-6.5-statutory-remedy The Court accepted the respondents' stand that objection under Para-6.5 is the available remedy against the Executive Engineer's demand notice and disposed of the writ by relegating the petitioner to that forum, without examining the demand on merits. ¶ 3-4

billing-objection-to-executive-engineer-under-6.5 Liberty was granted to file the clause 6.5 objection before the concerned Executive Engineer, who is to decide it in accordance with law after hearing the petitioner. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE DATED 23.03.2020

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 5